

GORSUCH, J., dissenting

And any remaining doubt about whether the States and the federal government are truly separate sovereigns was ultimately “resolved by war.”²⁶

From its mistaken premise, the Court continues to the flawed conclusion that the federal and state governments can successively prosecute the same person for the same offense. This turns the point of our federal experiment on its head. When the “ONE WHOLE” people of the United States assigned different aspects of their sovereign power to the federal and state governments, they sought not to *multiply* governmental power but to *limit* it. As this Court has explained, “[b]y denying any one government complete jurisdiction over all the concerns of public life, federalism protects the liberty of the individual from arbitrary power.”²⁷ Yet today’s Court invokes federalism not to protect individual liberty but to threaten it, allowing two governments to achieve together an objective denied to each. The Court brushes this concern aside because “the powers of the Federal Government and the States often overlap,” which “often results in two layers of regulation.” *Ante*, at 690. But the

²⁶ *Testa*, 330 U. S., at 390. The Court tries to make the most of *McCulloch*, pointing out that Chief Justice Marshall distinguished between “the people of a State” and “[t]he people of all the States.” *Ante*, at 689. But of course our federal republic is composed of separate governments. My point is that the federal and state governments ultimately derive their sovereignty from one and the same source; they are not truly “separate” in the manner of, say, the governments of England and Portugal. The American people “split the atom of sovereignty,” *ante*, at 688, to set two levels of government against each other, not to set both against the people. *McCulloch* is consistent with that understanding. In holding that the States could not tax the national bank, *McCulloch* sought to ensure that the national and state governments remained each in its proper sphere; it did not hold that the two governments could work in concert to abridge the people’s liberty in a way that neither could on its own.

²⁷ *Bond v. United States*, 564 U. S. 211, 222 (2011); see also *New York v. United States*, 505 U. S. 144, 181 (1992); *Alden v. Maine*, 527 U. S. 706, 758 (1999); *The Federalist* No. 51.